

An Act

ENROLLED SENATE
BILL NO. 1509

By: Jech and Burns of the
Senate

and

Newton of the House

An Act relating to groundwater use; amending 82 O.S. 2021, Section 1020.17, which relates to spacing rules; conforming statutory reference; removing requirement for certain public hearing; authorizing adoption of certain spacing; and providing an effective date.

SUBJECT: Spacing of water wells

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.17, is amended to read as follows:

Section 1020.17. The Oklahoma Water Resources Board may promulgate rules under Article I of the Administrative Procedures Act which establish a proper spacing of wells which, in its judgment, is necessary to an orderly withdrawal of water in relation to the allocation, by regular permits and temporary permits, of water to the land overlying the basin or subbasin. The Board ~~shall conduct at least one public hearing at a location within or in close proximity to each major basin or subbasin before adopting rules establishing well spacing for such basin or subbasin~~ may adopt specific spacing for each basin as part of establishing a maximum annual yield pursuant to Section 1020.6 of this title.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____